

public entity within the scope of his employment created the dangerous condition; or [¶] (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.”

The complaint alleges a dangerous condition. (Complaint, ¶12.) It alleges that the injury was proximately caused by the dangerous condition. (*Id.* at ¶15.) Plaintiff has also alleged that the dangerous condition created a reasonably foreseeable risk of the kind of injury suffered. (*Id.* at ¶¶12-13.) Plaintiff pleads that a negligent or wrongful act or omission of DVC’s employee, within the scope of his employment, created the dangerous condition, and that DVC had actual or constructive notice of the dangerous condition. (*Id.* at ¶¶14, 22.)

Under the standard described in *Quelimane Co., supra*, plaintiff’s title of a cause of action is not determinative of its nature. Accordingly, while the District’s contention on reply that “a public entity cannot be held liable for common law negligence” may be true, the facts alleged are sufficient to allege liability for a dangerous condition of public property pursuant to Government Code section 835.

Plaintiff’s opposition also points out that the statutes on which the complaint is based are included in the caption. The list is not specific as to which cause of action falls under which statute, but sustaining a demurrer based on these statutes not being copied into the body of the complaint would elevate form over substance. Both sides discuss Government Code section 835, which is among the statutes cited in the caption, and the facts included in the complaint satisfy the elements of the statute. The general rule is that “every *fact* material to the existence of its statutory liability must be pleaded with particularity.” (*Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795, emphasis added.) The Court is unaware of authority that also requires each cause of action to include a specific statutory citation. Any further clarification can be achieved through discovery requests.

While plaintiff does not respond to the demurrer’s arguments concerning the third cause of action, the cause of action is largely duplicative of the others. While the title may misidentify the nature of what is being pleaded, the styling of the complaint does not determine whether a cause of action has been stated. Both parties appear to understand that the cause of action stated is one for dangerous condition of public property.

The demurrer is overruled.

**11. 9:00 AM CASE NUMBER: C25-01475
CASE NAME: AUDREY WELSCH VS. HAYDEN FLOREZ
HEARING ON ORDER TO SHOW CAUSE IN RE: WHY A PRELIMINARY INJUNCTION SHOULD NOT BE
ISSUED CONTAINING THE SAME TERMS AS TRO PENDING FINAL JUDGMENT
FILED BY:**

TENTATIVE RULING:

Plaintiff Audrey Welsch’s request for a preliminary injunction is denied.

I. Background

Plaintiff Audrey Welsch filed this action on May 28, 2025, asserting causes of action for Claim and Delivery (Replevin), Conversion, Trespass to Chattels, Intentional Infliction of Emotional Distress, Negligent Infliction of Emotional Distress, and Declaratory Relief against Defendant Hayden Florez.

Plaintiff alleges that she and Defendant were formerly romantic partners and that during the relationship she purchased a German Shepherd dog, Maverick, registered him solely in her name through the American Kennel Club, and obtained psychiatric service-dog documentation and training for him. After the parties separated and Plaintiff moved out of the shared residence on March 30, 2024, they allegedly continued an informal exchange arrangement allowing Defendant temporary custody of Maverick. Plaintiff contends that Defendant was required to return Maverick on March 10, 2025, the end of an agreed-upon custody period, but failed to do so and has since refused to relinquish possession.

Defendant disputes Plaintiff's ownership claim, asserting instead that Maverick was a gift to him from Plaintiff in June 2020, supported by witness declarations and purported video evidence. Defendant also challenges Plaintiff's assertion that Maverick is a trained psychiatric service animal and disputes the extent and legitimacy of Plaintiff's claimed emotional distress.

Plaintiff first sought preliminary injunctive relief in June 2025, but the request was denied on October 9, 2025, on procedural grounds because service had not yet been effectuated at the time the motion was filed. Defendant was personally served on October 6, 2025. Plaintiff then renewed her request by filing an ex parte application for a temporary restraining order (TRO) and order to show cause re: preliminary injunction (OSC) on November 7, 2025, seeking the immediate return of Maverick. On November 10, 2025, the Court issued the OSC but denied the TRO, resulting in no immediate turnover of the dog.

Separately, in August 2025, Defendant filed a request for a domestic violence restraining order (DVRO) in Case No. D25-03116. Judge Coats issued a temporary restraining order that did not designate Maverick as a protected animal or alter possession but allowed the parties brief and peaceful contact to facilitate exchanges of the dog. The DVRO was set for hearing on October 3, 2025, but the petition was dismissed without prejudice when Defendant and his counsel failed to appear after inadvertently logging into the wrong Zoom department, a mistake they attribute to receiving no notice of reassignment.

Defendant later renewed his request, and on November 12, 2025, Judge Lee issued a temporary restraining order granting Defendant exclusive possession of Maverick, based in part on allegations that Plaintiff had neglected the dog. On December 3, 2025, Judge Lee continued the DVRO hearing to April 13, 2026, and ordered the November 12 restraining order to remain in full force and effect until that date.

On November 26, 2025, Defendant also filed a cross-complaint alleging stalking, trespass, and nuisance, asserting that Plaintiff gifted Maverick to him and later engaged in conduct intended to harass or interfere with him. Defendant filed his opposition to the preliminary-injunction request, evidentiary objections, and supporting witness declarations on November 26, 2025, and a request for judicial notice on December 5, 2025. A reply was due December 4, 2025; none was filed.

II. Legal Standards

“The general purpose of such an injunction is the preservation of the status quo until a final determination of the merits of the action.” (*Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 528.) In deciding whether to issue a preliminary injunction, a court must weigh two “interrelated” factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or non-issuance of the injunction. (*Butt v. State of California* (1992) 4 Cal.4th 668, 677–678.)

California recognizes two types of preliminary injunctions: prohibitory and mandatory. A prohibitory injunction restrains a party from taking action and therefore preserves the status quo. A mandatory injunction, by contrast, requires a party to take affirmative action and thus alters the status quo. Because mandatory injunctions compel change rather than prevent it, they are disfavored and are granted only in extraordinary circumstances. The moving party must make a showing far stronger than in the ordinary case. (See *Board of Supervisors v. McMahon* (1990) 219 Cal.App.3d 286, 295 [a preliminary mandatory injunction “is not permitted except in extreme cases where the right thereto is clearly established and it appears that irreparable injury will flow from its refusal”].)

The decision whether to grant a preliminary injunction lies within the sound discretion of the trial court and will not be disturbed on appeal absent an abuse of discretion. (*Thornton v. Carlson* (1992) 4 Cal.App.4th 1249, 1255.)

III. Analysis

A. Relief Requested

Plaintiff seeks a preliminary injunction compelling Defendant to immediately relinquish possession of Maverick and deliver the dog to her pending final judgment.

B. Evidentiary Matters

Defendant’s Objection to the Declaration of Sebastian Bendeck

Defendant submits evidentiary objections to various statements in the declaration of Plaintiff’s counsel, Sebastian Bendeck. Although the objections identify specific statements and grounds, they do not comply with CRC, rule 3.1354, because they are not sequentially numbered and they lack the required proposed order. For that reason, the Court declines to rule on them.

The Court notes, however, that much of the Bendeck declaration consists of hearsay and assertions not based on personal knowledge. To the extent the declaration reflects attorney argument rather than competent evidence, it carries little weight in evaluating Plaintiff’s likelihood of success or irreparable harm.

Defendant’s Request for Judicial Notice

Defendant’s request for judicial notice of the November 12, 2025 Domestic Violence Temporary Restraining Order and the December 3, 2025 Order on Request to Continue Court Hearing in Case No. D25-03116 is granted. (Evid. Code, § 452, subd. (d).)

C. Plaintiff's Likelihood of Success on the Merits

1. Effect of Judge Lee's Domestic Violence Restraining Order on the Requested Relief

By seeking a preliminary injunction compelling Defendant to relinquish possession of Maverick, Plaintiff is effectively attempting to avoid the effect of the November 12 Domestic Violence Temporary Restraining Order issued in Case No. D25-03116, which grants Defendant exclusive possession of the dog through the continued hearing set for April 13, 2026. Although the DVTRO was issued in a separate action, it remains an order of this Court. One superior court judge has already determined that Defendant should retain exclusive possession of Maverick during the pendency of the DVRO proceeding, and California law does not permit another department of the same superior court to issue an order that would conflict with or undermine that determination. "The ruling of one superior court judge in a case may not be overruled, overlooked, or ignored by another superior court judge." (*In re Alberto* (2002) 102 Cal.App.4th 421, 427–428; see also *Greene v. State Farm Fire & Casualty Co.* (1990) 224 Cal.App.3d 1583, 1588.)

Issuing the requested injunction would place this Court in direct conflict with the existing DVTRO. Nothing in this ruling prevents Plaintiff from seeking modification of that order in the family court, should she believe such relief is warranted. But this Court declines to enter relief that is incompatible with the DVTRO currently in effect.

2. The Mandatory Nature of the Requested Relief

Another issue presented by the motion, though not addressed by Plaintiff, is that she seeks relief in the nature of a mandatory injunction because it would alter, rather than preserve, the status quo. The status quo is the "last actual peaceable, uncontested status which preceded the pending controversy." (14859 Moorpark Homeowner's Ass'n v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1408.) The declarations indicate that, after the parties separated, they followed an informal arrangement under which Defendant had temporary custody of Maverick and returned him to Plaintiff at agreed-upon times. This shared-possession arrangement constitutes the last peaceable and uncontested status. The controversy arose only when Defendant did not return Maverick on March 10, 2025. Plaintiff does not seek to reinstate the prior shared-possession arrangement; rather, she seeks an order requiring Defendant to relinquish exclusive possession of the dog to her pending trial. Because such relief would change the status quo, it is mandatory in nature. Mandatory preliminary injunctions are disfavored and "are not permitted except in extreme cases where the right thereto is clearly established." (*Teachers Ins. & Annuity Assn. v. Furlotti* (1999) 70 Cal.App.4th 1487, 1493.) Given this heightened standard, the Court turns to the evidence submitted by both parties to determine whether Plaintiff has established a clearly defined right to immediate possession.

3. Plaintiff's Ownership Claim and Conflicting Evidence in the Record

The parties submit sharply conflicting evidence regarding ownership of Maverick. In her November 7, 2025 declaration, Plaintiff asserts that she purchased Maverick outright in July 2020 using her own funds, that all AKC registration, microchip information, and pet insurance identify her as the sole

owner, and that she alone paid for training, veterinary care, and other major expenses. (11/7/25 Welsch Decl. ¶¶ 3-6, 31.) She denies ever giving Maverick to Defendant as a birthday gift. (*Id.* ¶ 15.) Plaintiff further states that after she moved out in April 2024, she took Maverick with her but allowed Defendant periodic time with Maverick “out of goodwill” (*id.* 12), and that Defendant always returned the dog until he refused to relinquish him until March 10, 2025. (*Id.* ¶ 14.) Plaintiff also asserts that Maverick is her psychiatric service animal and that she undertook the process of obtaining documentation and training for that purpose. (*Id.* ¶¶ 7–10, 29.)

Defendant’s November 26, 2025 declaration offers a competing account. Defendant says that Plaintiff gave Maverick to him as a surprise birthday gift in June 2020 (11/26/25 Florez Decl. ¶ 6), that he only agreed to allow Plaintiff visitation after the parties broke up to “keep the peace” (*id.* ¶¶ 12-14), and that Defendant decided that the visitation arrangement should end after Plaintiff returned Maverick with a bloody ear infection. (*Id.* ¶¶ 18-20.) Defendant disputes Plaintiff’s assertion that Maverick is her psychiatric service dog, claiming instead that Plaintiff obtained the designation from a doctor she knew through work in order to fly with Maverick to a motocross event, and thereafter to keep him in her apartment without paying pet-related fees. (*Id.* ¶ 28.) Defendant also submits *numerous* third-party declarations stating that, based on the declarants’ observations of Defendant’s interactions with Maverick, as well as Plaintiff’s statements and conduct, they understood that Maverick belonged to Defendant. (See Plf’s 11/26/25 Amended Compendium of Evidence, Exs. 1-25.)

The evidentiary record leaves Plaintiff’s likelihood of prevailing on her ownership claim, at best, evenly balanced. Accordingly, even apart from Judge Lee’s order, Plaintiff has not shown the kind of clearly established right to immediate possession required to justify mandatory preliminary relief.

Because Judge Lee’s order remains in effect, this Court cannot issue relief that would conflict with it. And even if the DVTRO were disregarded, the evidence submitted by both sides remains sharply disputed, such that Plaintiff cannot satisfy the heightened showing required for mandatory injunctive relief. The Court further finds that, under the ordinary standard governing prohibitory relief, the competing declarations leave the evidence evenly balanced, which is insufficient to demonstrate a likelihood of success on the merits. Each of these considerations independently requires denial of the motion.

D. The Balance of Harms

As for the balance of harms, Plaintiff states that her separation from Maverick has caused severe physical and psychological difficulties, including daily panic attacks, loss of consciousness, falls resulting in injuries, sleep deprivation, and deteriorating mental health. (11/7/25 Welsch Decl. ¶¶ 19–21, 24–27.) She also claims lost wages and depletion of paid leave due to these symptoms. (*Id.* ¶¶ 22–23.) The Court has considered these statements. However, the evidentiary record does not clearly establish that Plaintiff’s well-being depends on uninterrupted, exclusive possession of Maverick pending trial. Plaintiff acknowledges that, before the parties’ dispute, the parties shared possession of the dog for approximately a year after their separation, during which she allowed Defendant to keep Maverick for extended periods. (*Id.* ¶¶ 12–14; see also 6/13/25 Welsch Decl. ISO Mot. for Prelim. Inj. ¶ 8 [noting that Plaintiff previously tolerated separations of up to three weeks during the shared-

custody arrangement].) These voluntary separations tend to weaken Plaintiff's claim that she now faces immediate and irreparable harm.

In addition, the Declaration of Hunter Capilla attaches and describes a series of Instagram posts made by Plaintiff during the months following Defendant's refusal to return the dog. These posts depict Plaintiff traveling, socializing, and participating in recreational activities without obvious limitation. (See 11/26/25 Capilla Decl. ¶¶ 1–5 and Exs. 1–8.) With no reply filed, this evidence remains unrefuted in the present record. The contrast between Plaintiff's assertions of daily debilitating symptoms and her documented activities on social media further undermines the claim that she faces immediate and irreparable harm absent exclusive interim possession of the dog.

Although Plaintiff submits evidence that separation from Maverick has had significant emotional and physical consequences for her, including symptoms she attributes to the loss of the dog's psychiatric-support functions, the evidentiary record remains mixed. Defendant has been Maverick's primary caretaker since this dispute arose, and he asserts his own emotional bond with the dog. On this record, the Court cannot conclude that the interim hardship to Plaintiff outweighs the hardship to Defendant in a manner sufficient to justify a change in possession before trial. In any event, without a showing of likely success on the merits, Plaintiff's motion must be denied regardless of how the harms balance.

IV. Conclusion

Based on the foregoing, the **Court denies the request for a preliminary injunction.**

12. 9:00 AM CASE NUMBER: C25-02371

CASE NAME: BETTY KARRIS VS. JILL CHERNE

***HEARING ON MOTION IN RE: ORDER GRANTING LEAVE TO CONDUCT INDEPENDENT MENTAL EXAM OF BETTY JEAN KARRIS**

FILED BY: KARRIS, BETTY JEAN

TENTATIVE RULING:

Two motions are before the court: (1) Plaintiff Betty Jean Karris (Betty Jean), through her Guardian ad Litem Harry Karris (Harry), moves for leave to conduct an Independent Mental Examination of Betty Jean; and (2) Plaintiff Betty Jean (represented by a different attorney and appearing without a guardian ad litem) moves to vacate the order appointing Harry Karris as guardian ad litem. Based on applications for orders shortening time, both matters were set before the Court on this date.

Betty Jean Karris, 91 years old, is the trustee of the Adrian and Betty J. Karris Trust. Defendant Jill Cherne (Jill) is her daughter. Harry Karris is her son. Betty Jean Karris transferred certain real property out of her trust to defendant Jill Cherne. Harry Karris contends that this transfer was without consideration and filed an action to recover the real property, as well as asserting other claims against Jill associated with other property. The action was filed on August 19, 2025, and Harry Karris was appointed as Betty Jean Karris' guardian ad litem on August 29, 2025.

On October 16, 2025, Betty Jean Karris appeared, through a different attorney, by way of a motion to